IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 104

C.P.(CAA)/22(CH)2022
(2nd Motion)

IN THE MATTER OF:
Adva Optical Networking India Pvt. Ltd. ... **Transferor Company**

And

Adva IT Solutions India Pvt. Ltd. ... **Transferee Company**

Under Section: 230-232, CA 2013

Order delivered on 07.03.2024

CORAM:
SHRI. RAHUL PRASAD BHATNAGAR
HON'BLE MEMBER (T)

SHRI. HARNAM SINGH THAKUR,
HON'BLE MEMBER (J)

PRESENT:
For the Petitioner : Mr. Shivam Narang, Advocate.

For the RD : Mr. Vineet Khatri, Company Prosecutor.

For the Income Tax Department : Mr. Yogesh Putney, Senior Standing Counsel.

For the Official Liquidator : Mr. Edward Augustine George, Advocate.

ORDER

Arguments heard on the Second Motion Petition. The Ld. Company Prosecutor is satisfied with the reply of the observation made by RD in its report. Observation and reply made by the concerned officer of the RD stated that there are no further comments in the observation.

Similarly, the Ld. Senior Standing Counsel for the Income Tax Department has no objection against the Scheme and there is no report of Official Liquidator.

March 7, 2024
Mukta

Heard. Order reserved.

Sd/-
(RAHUL PRASAD BHATNAGAR)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

March 7, 2024
Mukta